

CHAPTER 19.

An Act to amend the Colonial Naval Defence Act, 1865.

[20th October 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to provide that volunteers raised in colony shall form part of Royal Naval Volunteer Reserve,
28 & 29 Vict. c. 14.
3 Edw. 7. c. 6.

1.—(1) The proper legislative authority in a colony under the Colonial Naval Defence Act, 1865, shall have power to provide that any volunteers raised and maintained in pursuance of that Act shall form part of the Royal Naval Volunteer Reserve constituted under the Naval Forces Act, 1903 ; and, where such a provision is made by such legislative authority as respects any volunteers, the Colonial Naval Defence Act, 1865, shall apply to those volunteers as if sections four and seven of that Act, as set forth and adapted in Part I. of the Schedule to this Act, were substituted for sections four and seven of that Act as originally enacted.

(2) Where any such legislative authority has before the passing of this Act made such provision as aforesaid, the colonial enactment by which such provision is made shall have effect as if this Act had been in force at the time of the passing of the colonial enactment.

Power to provide for men being entered for service in the Navy on emergency.

2. Such legislative authority as aforesaid shall have power to provide that any seamen and others raised and maintained in pursuance of the Colonial Naval Defence Act, 1865, and entered on the terms of being bound to serve as ordered in any vessel provided by the Government of the colony, shall also be bound to general service in the Royal Navy in emergency ; and, where such a provision is made by such legislative authority as respects any men, section seven of the Colonial Naval Defence Act, 1865, as set forth and adapted in Part II. of the Schedule to this Act, shall apply to those men and their officers.

Short title.

3. This Act may be cited as the Colonial Naval Defence Act, 1909 ; and the Colonial Naval Defence Act, 1865, and this Act may be cited together as the Colonial Defence Acts, 1865 and 1909.

SCHEDULE.

Section 1.

PART I.

SECTIONS 4 AND 7 OF THE COLONIAL NAVAL DEFENCE ACT,
1865, AS ADAPTED TO COLONIAL VOLUNTEERS FORMING
PART OF THE ROYAL NAVAL VOLUNTEER RESERVE.

Section 4.

The volunteers raised as aforesaid in any colony shall form part of the Royal Naval Volunteer Reserve, in addition to the volunteers who may be

raised under the Naval Forces Act, 1903, but, except as in this Act expressly provided, shall be subject exclusively to the provisions made as aforesaid by the proper legislative authority of the colony.

Section 7.

It shall be lawful for His Majesty in Council from time to time as occasion requires, and on such conditions as seem fit, to authorise the Admiralty to accept any offer for the time being made or to be made by the Government of a colony to place at His Majesty's disposal for general service in the Royal Navy the whole or any part of the body of volunteers, with all or any of the officers, raised and appointed by that Government in accordance with the provisions of this Act, and, where any such offer is accepted, such of the provisions of the Naval Forces Act, 1903, as relate to men of the Royal Naval Volunteer Reserve raised in the United Kingdom when in actual service shall extend and apply to the volunteers whose services are so accepted.

PART II.

Section 2.

SECTION 7 OF THE COLONIAL NAVAL DEFENCE ACT, 1865, AS
ADAPTED TO MEN RAISED AND MAINTAINED IN A COLONY LIABLE
TO SERVE IN THE ROYAL NAVY.

Section 7.

It shall be lawful for His Majesty in Council from time to time as occasion requires, and on such conditions as seem fit, to authorise the Admiralty to accept any offer for the time being made or to be made by the Government of a colony to place at His Majesty's disposal for general service in the Royal Navy the whole or any part of the body of men, with all or any of the officers, raised and appointed by that Government in accordance with the provisions of this Act, and, where any such offer is accepted, the men and officers whose services are so accepted shall be deemed to all intents men and officers of the Royal Navy, and shall accordingly be subject to all enactments and regulations for the time being in force for the discipline of the Royal Navy.

CHAPTER 20.

An Act to give further powers to the Railway and Canal Commission to determine differences with respect to Telegraphs (including Telephones).

[20th October 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Any difference between the Postmaster-General and any body or person under the Telegraph Acts, 1863 to 1908, or under any licence or agreement relating to telegraphs (including telephones), shall, if the parties to such difference have before

Determina-
tion of
differences
with refer-
ence to
telegraphs.